UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,
Plaintiff,

v.

AGENT A. DERRICK #6910, Parole Agent,
California Department of Corrections and Rehabilitation,
in his individual capacity;

KATIE PALACIOS, Director,
HOPE Program (Stockton, California),
in her individual capacity;

AGENT G. NOGUCHI #7284, Supervising Parole Agent,
California Department of Corrections and Rehabilitation,
in his individual capacity;

Defendants.

FILED
JAN 05 2026
CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
BY DEPUTY CLERK

Case No.: 2:26-CV-00004-DJC-JDP(PS)

COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF
(42 U.S.C. § 1983 – JURY TRIAL DEMANDED)

I. INTRODUCTION

1. This is a civil rights action for damages and declaratory relief under 42 U.S.C. § 1983 arising from retaliation for protected speech, race-based disparate treatment, and arbitrary abuse of supervisory power by parole officials and a state-affiliated mandatory reentry program.

2. Plaintiff BRENDAN NGEHSI NEWANFORBI, a Black male, alleges that Defendants used parole authority and mandatory program requirements to punish constitutionally protected expression, deny employment opportunities, escalate supervision without legitimate basis, and ratify unconstitutional conduct at the supervisory level.

3. Defendant Agent A. Derrick explicitly told Plaintiff: *"You do not have freedom of speech. Not in HOPE group you don't."* This statement, made at their first meeting in or about January 2025, directly linked Plaintiff's protected speech to threatened

adverse consequences and would chill a person of ordinary firmness from continuing to speak.

4. The rights violated were clearly established at the time of Defendants' conduct, and no reasonable parole official could have believed the conduct alleged was lawful. *See Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995) (holding that "the prohibition against retaliatory punishment is 'clearly established law' in the Ninth Circuit, for qualified immunity purposes").

II. JURISDICTION AND VENUE

5. This Court has original jurisdiction over Plaintiff's federal civil rights claims pursuant to 28 U.S.C. §§ 1331 and 1343(a)(3).

6. Venue is proper in the Eastern District of California pursuant to 28 U.S.C. § 1391(b) because a substantial part of the events or omissions giving rise to the claims occurred in this District, and Defendants perform their official duties within this District.

7. Declaratory relief is authorized under 28 U.S.C. §§ 2201–2202.

III. PARTIES

8. Plaintiff BRENDAN NGEHSI NEWANFORBI is a Black male and a resident of Stockton, California. At all times relevant to this Complaint, Plaintiff was subject to parole supervision by the California Department of Corrections and Rehabilitation ("CDCR") and was required to participate in the HOPE Program as a mandatory condition of parole.

9. Defendant AGENT A. DERRICK #6910 was at all relevant times a Parole Agent employed by CDCR and assigned to supervise Plaintiff. Defendant Derrick acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendant Derrick is sued in his individual capacity.

10. Defendant KATIE PALACIOS was at all relevant times the Director of the HOPE Program at the Stockton, California facility. The HOPE Program is a mandatory parole reentry program operated in coordination with CDCR. Defendant Palacios acted jointly with parole officials, exercised authority over Plaintiff's mandatory program participation, communicated directly with parole agents regarding Plaintiff's

conduct and compliance, and made recommendations affecting Plaintiff's parole status. Defendant Palacios therefore acted under color of state law within the meaning of 42 U.S.C. § 1983. *See Rawson v. Recovery Innovations, Inc.*, 975 F.3d 742, 751–53 (9th Cir. 2020) (holding private parties act under color of state law when they exercise powers traditionally held by the state and perform functions under which the state owes constitutional obligations). Defendant Palacios is sued in her individual capacity.

11. Defendant AGENT G. NOGUCHI #7284 was at all relevant times a Supervising Parole Agent employed by CDCR with authority to review, approve, reject, or modify parole actions, conditions, and discharge determinations. Defendant Noguchi personally participated in the constitutional violations alleged herein by: (a) attending the Case Conference/Containment Team Meeting ("CTM") at which Plaintiff complained of retaliation and requested reassignment; (b) signing and imposing new parole conditions on Plaintiff in August 2025; and (c) reviewing and approving the Discharge Review Report that relied on input from Defendants Derrick and Palacios. Defendant Noguchi acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendant Noguchi is sued in his individual capacity.

IV. FACTUAL ALLEGATIONS

A. Protected Speech in Mandatory HOPE Program

12. As a mandatory condition of parole, Plaintiff was required to attend HOPE Program group sessions at the Stockton facility.

13. In 2024, during HOPE group sessions, Plaintiff engaged in verbal expression and complaints regarding disrespectful treatment by program staff and other participants, as well as concerns about program conditions. Plaintiff's speech concerned his treatment by state actors and was constitutionally protected activity addressing matters of public concern.

14. Rather than address misconduct by other participants or Plaintiff's legitimate concerns, HOPE Program personnel, including Defendant Palacios, characterized Plaintiff's protected speech as "disruptive," establishing a narrative that equated constitutionally protected complaints with misconduct.

B. Assignment to Agent Derrick and Explicit Speech Suppression

15. In or about January 2025, Plaintiff was assigned to Defendant Agent A. Derrick as his parole agent.

16. At their first meeting, Defendant Derrick stated that Plaintiff's speech in HOPE group was "disruptive" and warned Plaintiff that *"it would not be good for you if you didn't stop."*

17. When Plaintiff stated that he believed he had freedom of speech, Defendant Derrick replied: ***"You do not have freedom of speech. Not in HOPE group you don't."***

18. This explicit statement constitutes direct evidence of retaliatory motive and would chill a person of ordinary firmness from continuing to engage in protected speech. *See Sampson v. County of Los Angeles*, 974 F.3d 1012, 1020 (9th Cir. 2020) (holding it "clearly established" that "the First Amendment prohibits public officials from threatening... to chill protected speech out of retaliatory animus").

C. Denial of Employment Training and Economic Harm

19. In or about March 2025, Plaintiff received an offer of employment from FedEx Office for the position of Retail Customer Service Associate, with a guaranteed rate of $20.00 per hour and approximately thirty (30) hours per week.

20. The FedEx Office position required Plaintiff to complete mandatory training at a location in Modesto, California, beginning on or about April 1, 2025.

21. Plaintiff requested a temporary accommodation from mandatory HOPE Program attendance in order to complete the required job training. The HOPE Program's rigid attendance rules required Plaintiff to be present by 6:00 p.m.; late arrival resulted in denial of entry and constituted a parole violation.

22. Defendant Derrick and Defendant Palacios jointly denied Plaintiff's request for accommodation, citing prior accommodations and labeling the request "excessive," despite knowing that the denial would force Plaintiff to choose between his employment and compliance with parole conditions.

23. As a direct result of Defendants' denial of accommodation and the coercive enforcement of program attendance, Plaintiff was forced to resign from the FedEx

Office position on or about April 17, 2025, in order to avoid the risk of parole violation and incarceration.

24. The denial of accommodation directly contravened the stated rehabilitative purpose of parole supervision and the HOPE Program, which is designed to facilitate employment and successful reintegration. No legitimate penological goal was advanced by forcing Plaintiff to forfeit lawful employment.

D. CTM Meeting, Request for New Parole Agent, and Escalation

25. At a Case Conference/Containment Team Meeting ("CTM") held in mid-2025, Defendant Derrick presented a negative oral report regarding Plaintiff that focused in substantial part on Plaintiff's speech and demeanor in the HOPE Program.

26. Defendant Palacios characterized Plaintiff as a *"ringleader"* whose speech encouraged others to speak, further tying Plaintiff's constitutionally protected expression to adverse action and demonstrating that Defendants targeted Plaintiff specifically because of the persuasive effect of his speech.

27. During the CTM meeting, Plaintiff expressly requested a change of parole agent, citing Defendant Derrick's retaliatory conduct and explicit statements regarding Plaintiff's speech. The supervising agent present denied the request on the spot, despite being made aware of the conflict.

28. Defendant Derrick then recommended increasing Plaintiff's supervision level. The supervising agent initially rejected this recommendation, stating that Defendant Derrick should focus on other parolees.

29. Defendant Noguchi was present at this CTM meeting and thus had actual knowledge of: (a) Plaintiff's complaints regarding retaliation; (b) Plaintiff's request for reassignment to a different parole agent; and (c) Defendant Derrick's attempted escalation of supervision.

30. Despite the absence of any new parole violation, Plaintiff was subsequently subjected to twice-monthly parole visits (increased from once per month), substantially increasing the intrusion on Plaintiff's liberty and heightening the risk of technical violations.

E. Supervisory Ratification and Addition of New Conditions

31. In or about August 2025, Defendant Derrick presented Plaintiff with new parole conditions that were signed by Defendant Noguchi. These new conditions added restrictions not contained in Plaintiff's original terms of parole.

32. In or about November 2025, a Discharge Review Report was prepared that relied on input from Defendants Derrick and Palacios, including their characterizations of Plaintiff as "disruptive" and a "ringleader." The report recommended continued retention on parole.

33. Defendant Noguchi reviewed and approved the Discharge Review Report, thereby ratifying the underlying retaliatory and arbitrary conduct of Defendants Derrick and Palacios. *See Starr v. Baca*, 652 F.3d 1202, 1207 (9th Cir. 2011) (supervisory liability exists where supervisor "acquiesce[s]" in constitutional deprivation or acts with "reckless or callous indifference" to rights of others).

F. Race-Based Disparate Treatment and Similarly Situated Comparators

34. During the same period (2024–2025), at least one similarly situated parolee who is white, who participates in the same HOPE Program, and who is supervised by Defendant Derrick, has described receiving substantially more favorable treatment from Defendant Derrick than Plaintiff and other Black parolees.

35. At least one other Black parolee who participates in the HOPE Program and who was previously supervised by Defendant Derrick has described receiving similarly harsh treatment to that experienced by Plaintiff, including disparate enforcement of program requirements and supervision conditions.

36. The white comparator parolee is similarly situated to Plaintiff in all material respects: both are subject to the same parole office, the same mandatory HOPE Program requirements, and supervision by the same parole agent. Yet the white comparator was not subjected to the same denial of accommodations, escalation of supervision, added conditions, or retaliatory treatment that Plaintiff experienced.

37. The identities of the comparator parolees are known to Defendants and reflected in CDCR and HOPE Program records. Plaintiff will seek to identify specific comparators through discovery. *See Furnace v. Sullivan*, 705 F.3d 1021, 1030 (9th

Cir. 2013) (allowing equal protection claim to proceed based on allegations of disparate treatment in parole supervision).

38. No legitimate penological or supervisory interest explains the disparity in treatment between Plaintiff and similarly situated white parolees. The pattern of favorable treatment toward white parolees and harsh treatment toward Black parolees, combined with the pretextual justifications offered by Defendants, supports an inference of discriminatory intent.

V. CLAIMS FOR RELIEF

COUNT I

First Amendment Retaliation

(42 U.S.C. § 1983 – Against All Defendants)

39. Plaintiff realleges and incorporates by reference paragraphs 1 through 38 as though fully set forth herein.

40. Plaintiff engaged in constitutionally protected speech by expressing complaints, objections, and concerns regarding his treatment in a mandatory parole program and by state actors. This speech addressed matters of public concern and was protected under the First Amendment.

41. Defendants took adverse actions against Plaintiff, including but not limited to: (a) explicit threats to suppress Plaintiff's speech; (b) denial of reasonable accommodation for job training; (c) coercive enforcement of program attendance that forced Plaintiff to resign from employment; (d) escalation of supervision from monthly to twice-monthly visits; (e) imposition of new parole conditions; (f) denial of Plaintiff's request for reassignment to a different parole agent; and (g) characterization of Plaintiff as "disruptive" and a "ringleader" in official reports affecting Plaintiff's parole status.

42. Plaintiff's protected speech was a substantial or motivating factor in Defendants' adverse actions. *See Johnson v. Ryan*, 55 F.4th 1167, 1201–02 (9th Cir. 2022). The causal connection is established by: (a) Defendant Derrick's explicit statement linking Plaintiff's speech to threatened consequences; (b) the temporal proximity between Plaintiff's protected speech and the adverse actions; (c) Defendant Palacios's

characterization of Plaintiff as a "ringleader" whose speech influenced others; and (d) the pretextual nature of Defendants' justifications.

43. Defendants' conduct chilled Plaintiff's exercise of his First Amendment rights. Plaintiff altered his speech and behavior out of fear of further retaliation, sacrificing his ability to speak freely in a mandatory program in order to avoid punishment, incarceration, or transfer.

44. Defendants' adverse actions did not advance any legitimate penological or supervisory goal. To the contrary, the denial of employment accommodation undermined the rehabilitative purpose of parole supervision, and the escalation of supervision was imposed without any new violation.

45. The right to be free from retaliation for protected speech was clearly established at the time of Defendants' conduct. *See Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995); *Brodheim v. Cry*, 584 F.3d 1262, 1269–70 (9th Cir. 2009); *Inouye v. Kemna*, 504 F.3d 705, 712–13 (9th Cir. 2007). No reasonable parole official could have believed that explicitly threatening a parolee for exercising First Amendment rights, denying employment accommodations in retaliation for speech, or escalating supervision based on protected expression was lawful.

COUNT II

Equal Protection – Race-Based Disparate Treatment

(42 U.S.C. § 1983 – Against Defendants Derrick and Palacios)

46. Plaintiff realleges and incorporates by reference paragraphs 1 through 38 as though fully set forth herein.

47. Plaintiff is a Black male and a member of a protected class under the Equal Protection Clause of the Fourteenth Amendment.

48. Defendants Derrick and Palacios treated Plaintiff less favorably than similarly situated parolees of a different race with respect to: (a) accommodations for employment and scheduling conflicts; (b) supervision frequency and intensity; (c) imposition of additional conditions; and (d) characterization in official reports and communications.

49. At least one white parolee who is similarly situated to Plaintiff—participating in the same HOPE Program, supervised by the same parole agent, and subject to the same parole requirements—received more favorable treatment, including accommodations and less intensive supervision, than Plaintiff and other Black parolees.

50. Defendants Derrick and Palacios acted with discriminatory intent, and no rational or legitimate justification explains the disparity in treatment between Plaintiff and similarly situated white parolees. The pretextual justifications offered by Defendants, combined with the pattern of favorable treatment toward white parolees and harsh treatment toward Black parolees, supports an inference of intentional race discrimination. *See Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252, 265–68 (1977) (identifying factors for inferring discriminatory intent).

51. Intentional race-based disparate treatment by government officials violates clearly established law. *See Furnace v. Sullivan*, 705 F.3d 1021, 1030 (9th Cir. 2013); *Whren v. United States*, 517 U.S. 806, 813 (1996) ("the Constitution prohibits selective enforcement of the law based on considerations such as race"); *Serrano v. Francis*, 345 F.3d 1071, 1077 (9th Cir. 2003) ("Prisoners are protected under the Equal Protection Clause from invidious discrimination based on race").

COUNT III

Substantive Due Process – Arbitrary Abuse of Power

(42 U.S.C. § 1983 – Against All Defendants)

52. Plaintiff realleges and incorporates by reference paragraphs 1 through 38 as though fully set forth herein.

53. Alternatively and independently of Plaintiff's First Amendment claim, Defendants' conduct violated Plaintiff's right to substantive due process under the Fourteenth Amendment.

54. Defendants engaged in arbitrary, conscience-shocking, and abusive conduct, including: (a) coercive use of parole authority to sabotage Plaintiff's lawful employment; (b) escalation of supervision without any new violation or legitimate justification; (c) imposition of new conditions without basis; and (d) ratification of unconstitutional conduct at the supervisory level despite awareness of the underlying impropriety.

55. Defendants' actions were arbitrary, capricious, and conscience-shocking, and would constitute unconstitutional abuse of governmental authority regardless of whether Plaintiff had engaged in any protected First Amendment activity. The conduct was intended to injure Plaintiff and was not justified by any legitimate governmental interest.

56. The context of parole supervision is one in which actual deliberation is practical, and therefore the deliberate indifference standard applies. *See Porter v. Osborn*, 546 F.3d 1131, 1137 (9th Cir. 2008) ("Where actual deliberation is practical, then an officer's 'deliberate indifference' may suffice to shock the conscience"); *County of Sacramento v. Lewis*, 523 U.S. 833, 851 (1998). Parole officers have extended opportunities to consider their decisions and owe constitutional obligations to those under their supervision.

57. Defendants acted with deliberate indifference to Plaintiff's constitutional rights by knowingly using parole authority as an instrument of oppression rather than for legitimate supervisory purposes. *See Lewis*, 523 U.S. at 846–47 (substantive due process forbids officials from "abusing [their] power, or employing it as an instrument of oppression").

VI. DAMAGES

58. As a direct and proximate result of Defendants' acts and omissions, Plaintiff suffered actual, compensatory, and consequential damages, including but not limited to economic loss, emotional distress, reputational harm, and deprivation of liberty interests.

A. Economic Damages (Past and Ongoing)

59. Plaintiff suffered lost wages and employment opportunities as a result of Defendants' retaliatory and arbitrary conduct. In or about March 2025, Plaintiff received an offer of employment from FedEx Office for the position of Retail Customer Service Associate, with a guaranteed rate of $20.00 per hour and approximately thirty (30) hours per week.

60. Plaintiff began required training on or about April 1, 2025. Defendants denied Plaintiff reasonable accommodation from mandatory HOPE program attendance

despite knowing that the training schedule conflicted with rigid program requirements and that late arrival would result in denial of entry and a parole violation.

61. As a direct result of Defendants' denial of accommodation and the coercive enforcement of program attendance, Plaintiff was forced to resign from the FedEx Office position on or about April 17, 2025, in order to avoid the risk of parole violation and incarceration.

62. Plaintiff suffered past lost wages of no less than approximately $1,500 as a result of this forced resignation.

63. Plaintiff continues to suffer ongoing and future lost income as a result of Defendants' conduct. Mandatory program scheduling and escalated supervision continue to restrict Plaintiff's ability to maintain multiple employment opportunities and to complete full work shifts, resulting in continuing lost income estimated at approximately $600 per week, or approximately $2,600 per month, according to proof.

64. Plaintiff also suffered the loss of training time, professional opportunity, and advancement prospects associated with the FedEx Office position, as well as loss of managerial trust and future employment references.

B. Loss of Liberty and Increased Supervision

65. Defendants imposed increased parole supervision, escalating Plaintiff's required parole visits from once per month to twice per month without legitimate justification or new violation.

66. This escalation constituted a tangible deprivation of Plaintiff's liberty interests, increased Plaintiff's exposure to technical violations, and interfered with Plaintiff's employment, family life, and ability to live without constant fear of punitive consequences.

67. Defendants further threatened Plaintiff with incarceration or forced transfer to another county if his protected speech did not cease, and denied Plaintiff's in-person request for reassignment to a different parole agent despite clear evidence of retaliatory conflict.

C. Emotional Distress and Mental Anguish

68. As a result of Defendants' conduct, Plaintiff suffered significant and ongoing emotional distress, including anxiety, panic, depression, sleep disruption, hypervigilance, and fear of speaking.

69. Following a containment meeting and subsequent escalation of supervision, Plaintiff lived under constant apprehension that any misstep—real or perceived—could result in incarceration or removal from his stable residence. Parole visits became a source of fear and humiliation, often occurring in a manner that disrupted Plaintiff's household and caused distress to family members.

70. Plaintiff's emotional distress directly interfered with his ability to work and function normally, including causing him to miss scheduled employment following a parole visit on or about December 31, 2025 due to acute anxiety and depression.

71. Plaintiff altered his speech and behavior out of fear of further retaliation, sacrificing his ability to speak freely in a mandatory program in order to avoid punishment. Plaintiff's emotional injuries are ongoing.

D. Reputational and Professional Harm

72. Plaintiff was labeled as "disruptive" and "non-compliant" by HOPE Program staff, and that characterization was communicated to new clinicians and personnel.

73. These labels damaged Plaintiff's professional reputation, undermined trust placed in him by employers, and resulted in the loss of a valuable employment reference from FedEx Office, as well as ongoing stigma associated with Plaintiff's parole record.

E. Punitive Damages

74. Defendants acted willfully, maliciously, and with reckless and callous indifference to Plaintiff's clearly established constitutional rights. *See Smith v. Wade*, 461 U.S. 30 (1983) (punitive damages available for conduct motivated by evil motive or intent, or reckless or callous indifference to federally protected rights).

75. Defendants explicitly referenced Plaintiff's protected speech when imposing adverse consequences, continued retaliatory conduct after Plaintiff objected and requested reassignment, and ratified unconstitutional actions at the supervisory level despite having lawful alternatives available.

76. As a result, Plaintiff is entitled to an award of punitive damages against the individual Defendants in an amount sufficient to punish and deter similar misconduct.

F. Reservation of Proof

77. Plaintiff seeks compensatory and punitive damages according to proof, including interest, costs, and attorneys' fees pursuant to 42 U.S.C. § 1988.

VII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI respectfully requests that this Court:

A. Enter judgment in favor of Plaintiff and against Defendants on all claims;

B. Award Plaintiff compensatory damages for economic loss, emotional distress, loss of liberty, and reputational harm, according to proof;

C. Award Plaintiff punitive damages against individual Defendants in an amount sufficient to punish and deter similar misconduct;

D. Issue a declaratory judgment that Defendants' conduct violated Plaintiff's rights under the First and Fourteenth Amendments to the United States Constitution;

E. Award Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

F. Award Plaintiff pre-judgment and post-judgment interest as allowed by law; and

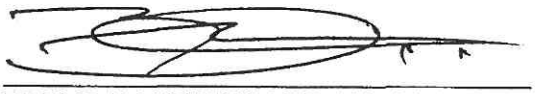
G. Grant such other and further relief as this Court deems just, proper, and equitable.

VIII. JURY DEMAND

Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: January 5, 2026

Respectfully submitted,



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